

Anamika Hazarika vs Manosh Kumar Das on 7 October, 2021

Author: Achintya Malla Bujor Barua

Bench: Achintya Malla Bujor Barua

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GAHC010152122021

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./44/2021

ANAMIKA HAZARIKA
W/O MANOSH KR. DAS, R/O BT ROAD, BONGAIGAON, P.O. AND DIST-
BONGAIGAON, ASSAM, P/R/A C/O HIMUJIT MAHANTA, BORPARA, P.O.
AND DIST- BONGAIGAON, ASSAM, PIN-783380

VERSUS

MANOSH KUMAR DAS
S/O LATE DR. UMESH CH. DAS, R/O WARD NO. 03, ABHAYAPURI MAIN
ROAD, P.O.-ABHAYAPURI, DIST- BONGAIGAON, PIN-783384, PRESENT
ADD- HOUSE NO. 4, KUMAR PARA, NARAYAN NAGAR, GUWAHATI, P.O.-
KUMARPARA, DIST-KAMRUP (M), ASSAM, PIN-781009

Advocate for the Petitioner : MR. B J MUKHERJEE

Advocate for the Respondent :

BEFORE
HONOURABLE MR. JUSTICE ACHINTYA MALLA BUJOR BARUA

O R D E R

07.10.2021 Heard Ms. R Saha, learned counsel for the petitioner.

2. Issue notice returnable in six weeks.

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3. Steps for service of notice on the respondent be taken by registered post with A/D card within three days.

4. This transfer petition u/s 24 of CPC is against the FC(Civil) Case No. 497/2021 pending in the Court of the learned Principal Judge, Family Court No.2, Kamrup at Guwahati in a proceeding u/s 13(1)(i-a) and (i-b) of the Hindu Marriage Act, 1955. It is stated that the petitioner wife is presently residing at Bongaigaon and during the sustenance of the marriage, they last resided at Bongaigaon and the marriage had taken place at Bongaigaon.

5. In view of the above, under Section 19 of the Hindu Marriage Act, 1955, prima-facie it appears that the Principal Judge, Family Court No. 2 at Kamrup (M) does not have jurisdiction over the matter.

6. On a prima facie case being made out, considering the balance of convenience as well as the irreparable loss that the petitioner may suffer, further proceeding in FC(Civil) Case No. 497/2021 pending in the Court of the learned Principal Judge, Family Court No.2, Kamrup at Guwahati shall remain stayed.

7. Call for the records of FC(Civil) Case No. 497/2021 from the Court of the learned Principal Judge, Family Court No.2, Kamrup at Guwahati.

List the matter after six weeks.

JUDGE Comparing Assistant